

EXHIBIT “H”

Page 1

1 SUPREME COURT OF THE STATE OF NEW YORK

2 COUNTY OF SUFFOLK

3
4 DIANE C. DESOUSA and THOMAS E.

5 DESOUSA,

6 Plaintiffs,

7 v.

Index No.

8 RICHARD A. CALVAGNO II and

600371/2021

9 PATRICK J. KARCHER,

10 Defendants.

11
12 VIDEOCONFERENCE DEPOSITION OF

13 VINCENT CAMARDA

14 DATE: Thursday, February 1, 2024

15 TIME: 2:09 p.m.

16 LOCATION: Remote Proceeding

17 Boynton Beach, FL 33472

18 REPORTED BY: Hazel Elardo Asca

19 JOB NO.: 6440329

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A P P E A R A N C E S

ON BEHALF OF PLAINTIFFS DIANE C. DESOUSA AND THOMAS
E. DESOUSA:

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I N D E X

EXAMINATION:

PAGE

By Mr. Indusi

7

E X H I B I T S

NO.

DESCRIPTION

PAGE

(None marked.)

QUESTIONS INSTRUCTED NOT TO ANSWER

PAGE

LINE

34

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QUESTIONS REFUSED TO ANSWER

PAGE

LINE

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V. CAMARDA

THE REPORTER: Good afternoon. My name is Hazel Elardo Asca; I am the officer assigned by Veritext to take the record of this proceeding. We are now on the record at 2:09 p.m.

This is the deposition of Mr. Vincent Camarda taken in the matter of Diane C. DeSousa and Thomas E. DeSousa against Richard A. Calvagno II and Patrick J. Karcher, on the first of February, 2024, at 86-15 Cobblestone Point Circle, Boynton Beach, Florida, 33742 [sic].

I am a notary authorized to take acknowledgments and administer oaths in New York. Parties agree that I will swear in the witness remotely.

And counselors, I would like to stipulate that I can swear in Mr. Camarda, being that I'm a New York notary and he is testifying from Florida today.

MR. INDUSI: Yes.

MR. BERGER: Stipulated.

THE REPORTER: Thank you.

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1
2 Additionally, absent an objection on
3 the record before the witness is sworn,
4 all parties and the witness understand and
5 agree that any certified transcript
6 produced from the recording virtually of
7 this proceeding:

8 - is intended for all uses permitted
9 under applicable procedural and
10 evidentiary rules and laws in the same
11 manner as a deposition recorded by
12 stenographic means; and

13 - shall constitute written
14 stipulation of such.

15 At this time will everyone in
16 attendance please identify yourself, your
17 firm name, and who you're representing
18 today, beginning with Mr. Indusi.

19 MR. INDUSI: Joseph Indusi,
20 I-N-D-U-S-I, Law Office of Joseph Indusi,
21 of counsel to John Cuomo.

22 MR. CUOMO: And with Mr. Indusi,
23 John Cuomo, Law Office of John Cuomo, 11
24 Fern Drive, Commack, New York.

25 MR. BERGER: Heath Berger, Berger

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2 Fischhoff Shumer Wexler & Goodman, attorney
3 for Vincent Camarda.

4 THE REPORTER: And Mr. Camarda, if
5 you could please state your full name for
6 the record, and your current address.

7 MR. CAMARDA: Vincent J. Camarda,
8 86-15 Cobblestone Point Circle, Boynton
9 Beach, Florida 33472.

10 THE REPORTER: Thank you.

11 Hearing no objection, I will now
12 swear in the witness.

13 Please raise your right hand.

14 WHEREUPON,

15 VINCENT CAMARDA,
16 called as a witness and having been first
17 duly sworn to tell the truth, the whole
18 truth, and nothing but the truth, was
19 examined and testified as follows:

20 THE REPORTER: Thank you, sir.

21 Actually, you're a little bit -- is there
22 a way for you to come a little bit closer
23 to your computer?

24 THE WITNESS: Me?

25 THE REPORTER: Yes.

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2 THE WITNESS: Really? I look -- I
3 look like I'm pretty good in the -- in the
4 picture. No?

5 THE REPORTER: I'm sorry, just the
6 audio. It's ok.

7 THE WITNESS: Oh, the audio.

8 THE REPORTER: You sound better
9 already. No problem.

10 THE WITNESS: Oh, okay.

11 THE REPORTER: Okay.

12 THE WITNESS: Okay.

13 THE REPORTER: Okay. Please proceed,
14 Counselor.

15 MR. INDUSI: Thank you -- so do you
16 want me to proceed?

17 THE REPORTER: Yes, just --
18 Mr. Berger. Yeah. He's back.

19 MR. INDUSI: Yes. He's back.

20 EXAMINATION

21 BY MR. INDUSI:

22 Q Good afternoon, Mr. Camarda. My
23 name is Joe Indusi and I represent Thomas
24 and Diane DeSousa in a civil action
25 against Richard Calvagno and

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Patrick Karcher. I'm going to ask you today a number of questions about that matter. You're not a party to that matter; you're here under a subpoena as a non-party witness. Do you understand?

A I do.

Q Okay. Before we begin, just a bunch of ground rules. Some of these -- yeah, I think they're all pretty much applicable, even though we're virtual.

Please let me ask the complete question so the court reporter can get it all down before you answer, even if you think you know what the answer is or what I'm looking for. If you let me complete, I'll do my best to let you answer completely before I fire off the next question.

Please keep your responses verbal and to words; the court reporter can't take down head shakes or nods, and can only take down verbal responses.

If you don't understand any question, you can say, "I don't understand

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2 the question." I'll do my best to
3 rephrase the question so that it's
4 clearer.

5 And lastly, if you need a break
6 at any time, just let me know. We'll
7 mute, I guess -- you can make arrangements
8 to speak to Mr. Berger. And the only
9 caveat to that is it if I ask a question,
10 just ask that you answer that question
11 first, and then we can take a break.

12 Do you understand all those
13 rules?

14 A Yep.

15 Q Are you taking any medications
16 today that would affect your ability to
17 tell the truth?

18 A No.

19 Q Have you had any alcohol or
20 drugs in the last 24 hours?

21 A No.

22 Q And is there anything that
23 you're aware of that would affect your
24 ability to testify truthfully here today?

25 A No.

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2 Q Okay. You stated, I think a few
3 times now, your full name is
4 Vincent Camarda. Is that correct?

5 A Yes.

6 Q Have you ever changed your name?

7 A No.

8 Q What is your date of birth?

9 A 9/26/63.

10 Q Where do you live at the present
11 time?

12 A Florida.

13 Q How long have you lived there?

14 A For about a month.

15 Q Who do you live with?

16 A I just want to go back for a
17 second. I -- I live in New York, and I
18 just -- I live here in the winter.

19 Q Oh, okay.

20 A Just to clarify. I feel like it
21 was coming across incorrectly. I live in
22 New York, and I just -- I'm a snowbird. I
23 just come down during the winter.

24 Q Are you still a New York
25 resident?

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2 A I am.

3 Q Okay. Let's talk about Florida
4 first. You've been down there for about a
5 month. Do you live down there with
6 anybody?

7 A I do.

8 Q Who do you live with?

9 A I -- I don't understand how that
10 would be relevant to --

11 MR. BERGER: I don't understand the
12 relevance to the question. It has nothing
13 to do with the issues that are involved in
14 this case.

15 THE WITNESS: Yeah. I'm not
16 answering the question.

17 MR. INDUSI: Well, I think it's all
18 fair background information. I mean --

19 MR. BERGER: We're appearing here on
20 a subpoena in regard to an accident you
21 have concerning an incident that occurred
22 in New York. So, I think if you want to
23 ask the question of who's with him in New
24 York, I'm okay with that.

25 MR. INDUSI: Okay.

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BY MR. INDUSI:

Q So just to clarify, the home in Florida that you live in for the wintertime, that's a second home of yours, is that correct?

A Yes, it is.

Q And when you say you're a New York resident, what's your New York residence address?

A 325 Grand Central Avenue, Amityville, New York 11701.

Q How long have you lived there?

A I'm not sure. Seven years, six?
I'm not sure.

Q Who do you live there with?

A I live there by myself.

Q Are you married?

A I am not.

Q Do you have children?

A I do.

Q How many?

A Three.

Q And they don't live with you?

A Correct.

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2 Q What is your highest level of
3 education?

4 A I have a CFP designation.

5 Q What is that?

6 A Certified financial planner.

7 Q Have you completed college?

8 A Yes. Four-year degree, BBA in
9 Accounting.10 Q Four-year degree, BA; is that
11 correct?12 A B -- B -- I'm sorry, BBA in
13 Accounting.14 Q Is that a bachelor's degree in
15 accounting?

16 A Yep.

17 Q Are you currently employed?

18 A Yes.

19 Q Where are you employed?

20 A A.G. Morgan Financial Advisors.

21 THE REPORTER: I'm sorry,

22 J.P. Morgan?

23 MR. BERGER: A.G.

24 THE WITNESS: A -- A as in Andrew, G
25 as in Gregory, Morgan Financial Advisors.

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2 THE REPORTER: Thank you.

3 THE WITNESS: Mm-hmm.

4 BY MR. INDUSI:

5 Q And is that -- are you an
6 employee of that company, or is that a
7 company you own and operate?

8 A I guess I'm both. I own it, but
9 I am an employee there as well.

10 Q And are you -- is this a company
11 you own by yourself, or do you have any
12 partners?

13 A I own it by myself.

14 Q What is the nature of that
15 employment?

16 MR. BERGER: Again --

17 THE WITNESS: I know, I was just --

18 MR. BERGER: Vinnie, stop. I'm going
19 to object to these questions. I mean,
20 your summons and complaint are based upon
21 some nuisance issues in regard to what
22 happened by the area where he lives.

23 I mean, we don't need to get into any
24 personal stuff, especially because there
25 is a litigation going on between the

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2 parties; and you know, at this point, that
3 stuff doesn't seem to have any relevance
4 to your questions here.

5 So, let's keep it to what you want to
6 ask him in regard to your summons and
7 complaint.

8 MR. INDUSI: So, I think I'm entitled
9 to, for sure, to inquire as to some very
10 basic background questions as to the
11 witness. I'm not asking him for his list
12 of employees, I'm asking him the general
13 nature of his business in one sentence.
14 And then I'm moving on.

15 These are all fair questions. I'm
16 not asking his kids' names --

17 MR. BERGER: There are issues that
18 your client has done, too, which we'll get
19 on another day.

20 Vin, you can give a one-sentence
21 answer of what you do.

22 THE WITNESS: Financial advisor.

23 MR. BERGER: There you go.

24 BY MR. INDUSI:

25 Q And where is that business

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2 physically located?

3 A In Massapequa.

4 Q Have you ever been convicted of
5 any crime?

6 A No.

7 Q The neighborhood that you live
8 in, on Grand Central Avenue in Amityville,
9 how would you describe that neighborhood?

10 A I don't know what to --

11 MR. BERGER: I think is -- the
12 question, is it like a residential area?

13 THE WITNESS: Oh. Oh, yeah. It's a
14 residential area, it's not a commercial
15 area. It's -- you know, individual homes.

16 MR. INDUSI: I'm just going to wait
17 for your lawyer to get off the phone.

18 BY MR. INDUSI:

19 Q Would you agree that the
20 neighborhood is mostly single-family
21 residential homes?

22 A I do.

23 Q Do you know who lives at 320
24 Grand Central Avenue?

25 A I don't.

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2 Q Do you know who Richard Calvagno
3 is?

4 A I do.

5 Q How do you know him?

6 A He lives across the street.

7 Q Do you know his address, sitting
8 here today?9 A I'm guessing, from your
10 question, that it's 320 Grand Central
11 Avenue.12 Q Okay. I don't need you to
13 guess. If you don't know his address
14 offhand, you could just say, "I don't know
15 the address offhand, but I know he lives
16 across the street from me." There's no
17 trick questions here. I'm just trying to
18 get answers to the questions.

19 A I -- yeah. I do not know then.

20 Q Okay. How would you
21 characterize your relationship with
22 Richard Calvagno?

23 A Friendly.

24 Q Have you ever been to his house?

25 A Many times.

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2 Q Has he ever been to your house?

3 THE WITNESS: Heath, was that for us?

4 MR. BERGER: No, I'm sorry; no.

5 THE WITNESS: No? Okay.

6 He -- he has been to my house.

7 BY MR. INDUSI:

8 Q Do you speak to him regularly?

9 A I would not say regularly, no,
10 but I do speak to him.11 Q Would you say you speak to him
12 on a weekly, monthly, or daily basis?13 A In the summer, frequently.
14 In -- in the other months, maybe once a
15 month? Maybe less?16 Q Do you speak to him when you see
17 him, or do you speak to him on the phone?18 A All. Face-to-face, on the
19 phone.20 Q Sitting here today, when was the
21 last time you spoke to Richard Calvagno?22 A It was in the last -- within the
23 last week.24 Q And I'm presuming, since you're
25 in Florida and he's in New York, that was

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over the phone?

A It was.

Q Did you speak to him about this case and this deposition when you spoke to him last, about a week ago?

A I did not.

Q Did you -- have you ever spoken to him about this case?

A Yes, I have.

Q When was that?

A At the -- it's been a few times since -- since the case started. It's -- various times.

Q And what was the subject matter of that discussion?

A That the DeSousas were suing him for a few different things.

Q Okay. And did he elaborate as to what those things were when you spoke to him?

A I'm a little confused about -- exactly what it is. I would just roughly say, they say his car makes too much noise; he's always having parties;

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2 property's sloppy; stuff like that.

3 Q And is that information that you
4 gleaned, what you just said, from
5 discussions with Richard Calvagno, or from
6 some other source?

7 A From Rich.

8 Q Okay. Did you ever read the
9 pleadings in this case? The complaint or
10 the answer?

11 A I just forwarded it to Heath.
12 No.

13 Q When you said you forwarded it
14 to Heath, do you mean you forwarded to
15 Heath the notice of deposition that you
16 received to appear here today, or did you
17 mean the complaint and answer that I asked
18 you in the previous question?

19 A Oh, I'm sorry, thank you for
20 clarifying that. No, the notice that
21 required me to do this deposition.

22 Q So other than that notice, and I
23 believe that notice was a 1, 2, 3, 4, 5,
24 6-page document, other than that notice,
25 did you read any of the other documents

Page 21

1 V. CAMARDA

2 that have been filed in connection with
3 this case?

4 A No.

5 Q Do you know who Patrick Karcher
6 is?

7 A No.

8 Q Who lives, to your knowledge, at
9 the Calvagno residence across the street
10 from you?

11 A Rich and his partner.

12 Q Do you know his partner's name?

13 A No.

14 Q Have you ever met his partner?

15 A Yes.

16 Q Approximately how many times?

17 A Not -- once or twice.

18 Q Are you aware of the vehicle
19 that Richard Calvagno drives?

20 A I am.

21 THE REPORTER: Sorry, what was that?
22 What was the answer?

23 THE WITNESS: Oh, my question? "I
24 am."

25 THE REPORTER: Oh, "I am." Thank

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2 you.

3 THE WITNESS: Sorry.

4 BY MR. INDUSI:

5 Q And what is that vehicle that
6 Richard Calvagno drives, to your
7 knowledge?

8 A I don't -- I don't know. It's a
9 black sedan. Maybe it's a Dodge?

10 Q And what type of vehicle, if you
11 know, does Richard Calvagno's partner
12 drive?

13 A He -- his car was totaled, so I
14 don't know what car he drives currently.

15 Q How did you come to learn that
16 his car was totaled?

17 A Rich told me. That was quite a
18 while ago.

19 Q And so sitting here today, you
20 are unaware what vehicle Rich Calvagno's
21 partner drives? Is that your testimony?

22 A It is.

23 Q Have you ever seen either of
24 them drive a Dodge Charger?

25 A Well, I guess you're talking

Page 23

1 V. CAMARDA

2 about that black sedan that we're
3 referring to.

4 Q If you know that to be a Dodge
5 Charger.

6 A I'm not sure that it is. I -- I
7 think it might be, as I said before. I
8 think it's a Dodge. I've only seen Rich
9 drive it.

10 Q Have you ever seen Rich Calvagno
11 or his partner drive the black sedan,
12 which you believe may be a Dodge, fast on
13 Grand Central Avenue?

14 A No.

15 Q Have you ever --

16 A Absolutely not.

17 Q Have you ever seen either of
18 them drive the black sedan, that you
19 believe may be a Charger, aggressively on
20 Grand Central Avenue, in Amityville?

21 A Nope.

22 Q Have you -- when you've seen
23 Rich Calvagno drive the black sedan that
24 you believe to be a Charger, were you in
25 the car with him, or outside of the car?

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2 Could you just elaborate when you've seen
3 him drive the car?

4 A I was never in his car. It was
5 just across the street. See him pull out,
6 drive down the road -- you know.

7 Q So you'd be inside your house or
8 outside your house when you've seen him
9 drive the car down the block?

10 A Both.

11 Q And have you -- in either
12 scenario, when you were inside or outside,
13 have you had the opportunity to hear the
14 noise emitted from that car when it was
15 driven down the road?

16 A Sure.

17 Q How would you characterize the
18 exhaust on the black vehicle that
19 Mr. Calvagno has driven, that you've seen?

20 A Normal.

21 Q And you said already you've
22 never been in the car?

23 A Correct.

24 Q Now do you know if Rich Calvagno
25 owns a boat?

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1

2

A I do.

3

Q Have you ever been on the boat?

4

A No.

5

Q Do you know what type of boat

6

Rich Calvagno owns?

7

A I don't.

8

Q Do you know if he owns more than

9

one boat?

10

A I don't.

11

Q Do you own a boat?

12

A I do.

13

Q Did you ever keep your present

14

boat, or any prior boat, in

15

Rich Calvagno's yard?

16

A No.

17

Q Have you ever known

18

Rich Calvagno to rent out his backyard for

19

dock space?

20

A No.

21

So I may have -- I -- I answered

22

your question, two questions ago,

23

literally. But maybe I didn't answer it

24

correctly.

25

So you said, has my boat ever

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Q Correct.

Q Okay.

A Okay. People put their --

A Yes.

Q And was that for storage

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2 drive my boat over to your yard, have a
3 cocktail, and go home?"

4 A No, no, I keep my boat at Rich's
5 house.

6 Q Okay.

7 A In the water.

8 Q When you say you keep it at
9 Rich's house, is that during the winter --
10 during the boating season here in
11 New York?

12 A Yes.

13 Q And that's throughout the entire
14 season you keep it there, not a part of
15 it; is that correct?

16 A I don't know exactly -- I mean,
17 you know, in May it goes in the water and
18 it's there for a few months, and then it
19 comes out.

20 Q Understood. You don't keep it
21 there over the winter?

22 A Do not.

23 Q Do you pay Rich Calvagno rent to
24 keep your boat there?

25 A I do not.

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2 Q Why are you allowed to keep your
3 boat in Rich Calvagno's yard?

4 A He's a good man.

5 Q Did you ever observe any other
6 boats being kept in Rich Calvagno's yard
7 while you've had your boat tied up there?

8 A Yes.

9 Q How many other boats?

10 A I don't know. Two?

11 Q I was going to say, at least
12 more than one, right?

13 A Yeah. Uh-huh.

14 Q And can you just describe how
15 and where you tied up in his backyard?16 A It's been in various spots in
17 the few years that I've been a boat owner.
18 Most recently, it's toward the back of his
19 house.20 Q So there was a boat in front of
21 you and a boat behind you? Side --22 A No. I'm all the way in the
23 front. Rich -- Rich's boat was behind
24 mine.

25 Q So Rich -- you do know that Rich

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1 V. CAMARDA

2 does own a boat, then?

3 A Yes. But your question was,
4 "what kind of boat?" And I don't know
5 what kind of boat.

6 Q Okay. So Rich's boat is kept
7 behind yours, and then there's another
8 boat that's kept behind Rich's boat?

9 A Yes.

10 Q And is there any other boats
11 that you're aware of that are kept in that
12 backyard of Rich Calvagno's house?

13 A So -- his -- his canal goes
14 behind the back of his house, and up the
15 side. My boat is up the side. There's
16 also a boat on the canal.

17 Q Which would be along the back
18 property line?

19 A Exactly.

20 Q So you keep your boat along the
21 side property line? I believe that would
22 be the southern property line of the
23 house?

24 A No. Oh -- no. No. Nope. The
25 northern --

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V. CAMARDA

1

2

Q Northern --

3

A -- side of the property.

4

Q Right. Okay.

5

6

A Yeah, there's no -- there's no
water on the southern side.

7

8

9

Q Okay. Do you know if Rich
Calvagno has ever had any weddings in his
yard?

10

A Yes, he did.

11

Q And did you attend that wedding?

12

A No, I did not.

13

14

Q How did you know that he had a
wedding in his yard?

15

16

17

18

A He told me was -- he has a
friend that couldn't afford to get married
at a place, so he was nice enough to let
them use his -- his yard.

19

20

21

22

Q I just want to go back quick --
how many years have you kept your boat in
Rich Calvagno's yard during the boating
season?

23

24

A I believe it's five. It might
be four. Four or five.

25

Q And what type of boat do you

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1 V. CAMARDA

2 keep there?

3 A It's a catamaran.

4 Q Powerboat?

5 A It's a powerboat. Power
6 catamaran.

7 Q World Cat?

8 A No. It's -- it's an Aquila 36
9 Cruiser.

10 Q Got it. Never heard of that
11 make. Interesting. Not many cat boats
12 out there.

13 A I'm probably the only one.

14 Q Okay. So I've asked you some
15 questions about Mr. Camarda -- I'm sorry,
16 Mr. Calvagno.

17 A Right.

18 Q Do you know who Thomas DeSousa
19 is?

20 A I do.

21 Q How do you know him?

22 A He lives next door to me.

23 Q And you lived there, I think you
24 said, about six or seven years?

25 A Six or seven.

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2 Q Is that right?

3 A Yes, I said six or seven. I'm
4 not exactly sure.5 Q When you moved there, did
6 Mr. DeSousa live there already?

7 A Yes, he did.

8 Q And did you meet him as soon as
9 you moved in?

10 A I would say so.

11 Q You would say so, or --

12 A I would say so. You know. You
13 know -- within --14 Q How would you describe your
15 relationship with Tom DeSousa when you
16 first moved into the neighborhood?

17 A Friendly.

18 Q Did you guys ever go out to
19 dinner, hang out --

20 A No.

21 Q -- that?

22 A Just neighbors next door. I
23 wave hello.24 Q Did you -- so, sitting here
25 today, how would you characterize your

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1 V. CAMARDA

2 relationship with Tom DeSousa?

3 A Not good.

4 Q And what, in your opinion,
5 caused the relationship to deteriorate?

6 A Him cursing me out, threatening
7 to kill me, rip my heart out. I could
8 just keep going. You want me to keep
9 going?

10 Q I want you to answer the
11 question completely, sure.

12 A Yeah, so just -- suing me for my
13 garage -- that's enough. That's more
14 than --

15 Q When you were friendly, had you
16 ever been in his house?

17 A I have never been in his house.

18 Q And had he ever been in your
19 house when you guys were friendly?

20 A He has never been in my house.

21 Q Was there one particular event
22 that caused the relationship to sour, to
23 the best of your recollection?

24 A Let me think. So --

25 MR. BERGER: You know, I'm going to

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1
2 have my client not answer these. There is
3 a litigation going on between -- that
4 involves your client and my client, and
5 those may be issues that are going to be
6 raised at another point of litigation.

7 I think he's indicated that his
8 relationship with Mr. DeSousa is not good.

9 MR. INDUSI: Yean, I don't think
10 that's a viable objection --

11 MR. BERGER: That's okay. I'm going
12 to object, and advise him not to answer.
13 If you want to go into court we can deal
14 with it, but there is a federal court case
15 that's going on, and it does have issues
16 concerning his relationship with
17 Mr. DeSousa, so I don't really want to get
18 into those issues that are involved into
19 another lawsuit.

20 He's a third party -- he's appearing
21 here as a witness, not as a party.

22 MR. INDUSI: So I'm going to -- so
23 you're directing him not to answer this
24 question?

25 MR. BERGER: Yeah --

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2 MR. INDUSI: Basically because
3 there's another pending lawsuit?

4 MR. BERGER: I can -- you're right.
5 And if you're going to get into his
6 relationship, I think those are issues
7 that involve the other lawsuits.

8 MR. INDUSI: I think it also is very
9 relevant here, because it goes to bias.

10 MR. BERGER: And you can bring that
11 out in your trial, I guess.

12 MR. INDUSI: Well, we're at a
13 deposition, so I'm going to -- if you're
14 going to direct him not to answer the
15 question, then we'll have to address with
16 the court, and we may have to bring him
17 back, so --

18 MR. BERGER: Okay.

19 MR. INDUSI: Are you going to object,
20 then, to any line of questioning about his
21 relationship with the party in this case?

22 MR. BERGER: I think he's testified,
23 and he will continue to testify, about how
24 he doesn't have a good relationship with
25 him, but I'll let you ask the questions,

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2 and we'll go from there.

3 MR. INDUSI: So the last question I
4 posed, what his recollection of the first
5 time the relationship broke down, you're
6 directing him not to answer that question?

7 MR. BERGER: I don't see the
8 relevancy to that.

9 MR. INDUSI: And I'm telling you I
10 think there's a relevancy, and you're
11 saying --

12 MR. BERGER: Okay.

13 MR. INDUSI: -- you're still
14 directing him not to answer? Relevance is
15 not a basis to direct a person --

16 MR. BERGER: Okay. I'm telling him
17 not to answer.

18 MR. INDUSI: Okay.

19 BY MR. INDUSI:

20 Q Did you ever speak to
21 Mr. DeSousa -- did you ever have any
22 discussion with Mr. DeSousa about
23 Rich Calvagno?

24 A No.

25 Q Did Tom DeSousa ever approach

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2 you to get you to join in his lawsuit
3 against Rich Calvagno?

4 A No.

5 Q Have you ever seen Tom DeSousa
6 block Richard Calvagno's driveway so that
7 he could not leave for work?

8 A No.

9 Q Do you know who Jim and
10 Pat Schneider are?

11 A I do, but those aren't the
12 correct last names.

13 Q You know who Jim Venezia and
14 Pat Schneider are?

15 A Yes.

16 Q Are those the correct names?

17 A Yes.

18 Q What's your relationship with
19 them?

20 A They live next door to me.

21 Q Do you have a friendly
22 relationship with them?

23 A I have no relationship with
24 them.

25 Q Is there any particular reason

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2 that you have no relationship with them?

3 A What would that have to do with
4 Rich fighting with Tom?

5 Q Well, I'm -- so --

6 A What would that have -- what
7 would that have to do --

8 MR. BERGER: You can give a general
9 answer to the question.

10 THE WITNESS: Yeah, I answered the
11 question.

12 BY MR. INDUSI:

13 Q What was your answer?

14 A I have no relationship with
15 them.

16 Q And do you have any -- sitting
17 here today, why do you not have any
18 relationship with them?

19 A And I'll say it again, it has
20 nothing to do with this. I'm not
21 answering the question.

22 MR. INDUSI: So we're going to mark
23 here, again, that the witness is refusing
24 to answer a question. It's a neighborhood
25 dispute. His neighbors and his

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2 relationship with his neighbors are
3 relevant.

4 Again, there's no -- you can't just
5 say, "I don't want to answer a question
6 because I don't want to answer a
7 question."

8 THE WITNESS: Sure I can. And I just
9 did.

10 MR. BERGER: Okay. That's it. Let's
11 just move on.

12 BY MR. INDUSI:

13 Q So are you refusing to answer
14 any other questions about Jim Venezia and
15 Pat Schneider?

16 A I'll tell you that they are
17 involved in a lawsuit against me with
18 Tom and Diane DeSousa. That's my answer.

19 Q And is that lawsuit why you say
20 you have no relationship with them?

21 A Yes.

22 Q And is that lawsuit pending now,
23 still today, or is that lawsuit over?

24 A Pending.

25 Q Pending? So it's still pending

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2 to your knowledge?

3 A Yes.

4 Q And what is the subject matter
5 of that lawsuit?

6 MR. BERGER: Again, we're here to
7 talk about the issues in this case and
8 what you need my client to testify to, you
9 can continue to testify. Talk about
10 issues and other lawsuits that your client
11 is involved with against my client, I'm
12 going to advise him again not to answer
13 that, and we'll move forward.

14 You can ask him those questions after
15 any deposition you have concerning that
16 case. But here, you've subpoenaed him to
17 answer questions in regard to the summons
18 and complaint in regard to this action.

19 BY MR. INDUSI:

20 Q Now you said before you never
21 read the summons and complaint in this
22 action. Is that correct?

23 A Correct.

24 Q But you did read the notice of
25 deposition and -- that was served on you

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2 before you forwarded it to Mr. Berger; is
3 that correct?

4 A Correct.

5 Q And did you see that you are
6 listed as a witness in connection with
7 this matter that we're here for today?

8 A I just presumed that because I
9 was getting one, that I would be a
10 witness, yes.

11 Q Did you notice that attached to
12 that subpoena is two pages of a response
13 filed by Rich Calvagno which specifically
14 lists you as a witness in that complaint?

15 A I didn't -- I did not see that.

16 Q Sitting here today, do you --
17 what are you a witness to in connection
18 with the complaint against Mr. Calvagno?

19 A I'm here because you asked me to
20 be here to give you some information
21 regarding the dispute between Tom and
22 Rich. And that's what I'm doing.

23 Q Right. So again, I'm just going
24 to rephrase the question. It's not a
25 trick question. Just so you understand

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2 what my question is, Rich Calvagno noted
3 your name as a witness in this case. We
4 didn't choose you as a witness;

5 Rich Calvagno listed you as a witness.

6 I'm asking you the question, what did you
7 witness in this case to your knowledge?

8 A I have no idea, so any question
9 you ask me I will answer it completely
10 with regards to this situation between the
11 two of them.

12 Q Did you ever have any specific
13 questions -- discussions -- withdrawn,
14 sorry. Did you have any specific
15 discussions with Richard Calvagno about
16 you being a witness for him in this case?

17 A He just said that "I'm putting
18 you down as part of this case, and they're
19 going to ask you some questions." I said,
20 "No problem."

21 Q And when was that, that that
22 discussion occurred?

23 A It was quite a while ago.

24 Q And was there any specific thing
25 that he told you he wanted you to be a

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2 witness for?

3 A He didn't give me anything that
4 was specific; "talk about this, talk about
5 that." No; he didn't.

6 MR. INDUSI: Give me one second.

7 THE WITNESS: Heath, I have another
8 appointment at three o'clock.

9 MR. BERGER: Okay. I think we should
10 be okay. Join the club.

11 THE WITNESS: Yeah.

12 MR. INDUSI: I have nothing further.

13 MR. BERGER: Okay. We appreciate it.

14 THE REPORTER: Okay. So if there's
15 nothing else, I just need to take the
16 transcript order, Mr. Indusi. Is it
17 regular turnaround time, which is 10-14
18 days?

19 MR. INDUSI: Yes.

20 THE REPORTER: Okay. And will you be
21 providing one to Mr. Berger? Mr. Berger,
22 are you ordering? How does it work
23 between you?

24 MR. BERGER: I'm a third party, so
25 I'm not ordering it. You could --

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MR. INDUSI: Yep.

THE REPORTER: Okay. All right. I just have a few spelling questions, so if there's nothing else, this concludes today's testimony given by Mr. Vincent Camarda.

We are off the record. The time is 2:47 p.m.

(Whereupon, at 2:47 p.m., the proceeding was concluded.)

VINCENT CAMARDA

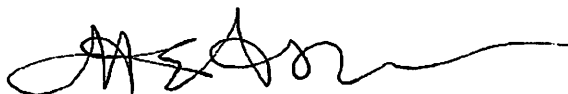
Subscribed and sworn to
before me this _____
day of _____, 2024.

Notary Public

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1 CERTIFICATE OF DEPOSITION OFFICER

2 I, HAZEL ELARDO ASCA, the officer before whom the
3 foregoing proceedings were taken, do hereby certify that
4 any witness(es) in the foregoing proceedings, prior to
5 testifying, were duly sworn; that the proceedings were
6 recorded by me and thereafter reduced to typewriting by a
7 qualified transcriptionist; that said digital audio
8 recording of said proceedings are a true and accurate
9 record to the best of my knowledge, skills, and ability;
10 that I am neither counsel for, related to, nor employed by
11 any of the parties to the action in which this was taken;
12 and, further, that I am not a relative or employee of any
13 counsel or attorney employed by the parties hereto, nor
14 financially or otherwise interested in the outcome of this
15 action.



16 HAZEL ELARDO ASCA

17 Notary Public in and for the
18 State of New York
19
20
21
22
23
24
25

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CERTIFICATE OF TRANSCRIBER

I, NICOLE MURRAY, do hereby certify that this transcript was prepared from the digital audio recording of the foregoing proceeding, that said transcript is a true and accurate record of the proceedings to the best of my knowledge, skills, and ability; that I am neither counsel for, related to, nor employed by any of the parties to the action in which this was taken; and, further, that I am not a relative or employee of any counsel or attorney employed by the parties hereto, nor financially or otherwise interested in the outcome of this action.



NICOLE MURRAY

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ERRATA SHEET
VERITEXT/NEW YORK REPORTING, LLC

CASE NAME: Diane C. Desousa, Et Al. v. Richard A. Calvagno II, Et Al.

DATE OF DEPOSITION: 2/1/2024

NAME OF DEPONENT: Vincent Camarda

PAGE	LINE (S)	CHANGE	REASON
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Vincent Camarda

SUBSCRIBED AND SWORN TO BEFORE ME

THIS DAY OF , 20 .

(NOTARY PUBLIC)

MY COMMISSION EXPIRES:

[& - aquila]

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[designation - friendly]

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New York Code

Civil Practice Law and Rules

Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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Veritext Legal Solutions represents that the foregoing transcript is a true, correct and complete transcript of the colloquies, questions and answers as submitted by the court reporter. Veritext Legal Solutions further represents that the attached exhibits, if any, are true, correct and complete documents as submitted by the court reporter and/or attorneys in relation to this deposition and that the documents were processed in accordance with our litigation support and production standards.

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Page 1

1 SUPREME COURT OF THE STATE OF NEW YORK
2 COUNTY OF SUFFOLK

3 -----X
4 DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No.:

Plaintiffs,

600371/2021

-against-

6
7
8 RICHARD A. CALVAGNO II AND PATRICK J.
9 KARCHER,

Defendants.

10 -----X

11 330 Old Country Road
12 Mineola, New York

13 January 16, 2024
14 10:17 A.M.

15
16 EXAMINATION BEFORE TRIAL of WILLIAM WURSTER, a
17 Nonparty witness herein, taken by Plaintiffs, pursuant
18 to Subpoena.

-oo0oo-

Page 2

A P P E A R A N C E S :

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S T I P U L A T I O N S

IT IS HEREBY STIPULATED AND AGREED by
and between the attorneys for the respective parties
herein, and in compliance with Rule 221 of the Uniform
Rules for the Trial Courts

THAT the parties recognize the provision of
Rule 3115 subdivisions (b), (c) and/or (d). All
objections made at a deposition shall be noted by the
officer before whom the deposition is taken, and the
answer shall be given and the deposition shall proceed
subject to the objections and to the right of a person
to apply for appropriate relief pursuant to Article 31
of the CPLR.

THAT every objection raised during a
deposition shall be stated succinctly and framed so as
not to suggest an answer to the deponent and, at the
request of the questioning attorney, shall include a
clear statement as to any defect in form or other basis
of error or irregularity. Except to the extent
permitted by CPLR Rule 3115 or by this rule, during the
course of the examination persons in attendance shall
not make statements or comments that interfere with the
questioning

THAT a deponent shall answer all questions at a
deposition, except (i) to preserve a privilege or right

Page 4

1 of confidentiality, (ii) to enforce a limitation set
2 forth in an order of a court, or (iii) when the question
3 is plainly improper and would, if answered, cause
4 significant prejudice to any person. An attorney shall
5 not direct a deponent not to answer except as provided
6 in CPLR Rule 3115 or this subdivision. Any refusal to
7 answer or direction not to answer shall be accompanied
8 by a succinct and clear statement of the basis
9 therefore. If the deponent does not answer a question,
10 the examining party shall have the right to complete the
11 remainder of the deposition

12 THAT an attorney shall not interrupt the
13 deposition for the purpose of communicating with the
14 deponent unless all parties consent or the communication
15 is made for the purpose of determining whether the
16 question should not be answered on the grounds set forth
17 in section 221.2 of these rules and, in such event, the
18 reason for the communication shall be stated for the
19 record succinctly and clearly.

20 THAT failure to object to any question
21 or to move to strike any testimony at this examination
22 shall not be a bar or waiver to make such objection or
23 motion at the time of the trial of this action, and is
24 hereby reserved; and

25 THAT this examination may be signed and

Page 5

1 sworn to by the witness examined herein before any
2 Notary Public, but failure to do so or to return the
3 original of the examination to the attorney on whose
4 behalf the examination is taken shall not be deemed a
5 waiver of the rights provided by Rules 3116 and 3117 of
6 the CPLR, and shall be controlled thereby, and

7 THAT certification and filing of the
8 original of this examination are waived; and

9 THAT the questioning attorney shall provide
10 counsel for the witness examined herein with a copy of
11 this examination at no charge.

12
13
14 -oo0oo-
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22
23
24
25

Page 6

1 W I L L I A M W U R S T E R, having been first duly
2 sworn by Rosemarie Tulumello(Ellis), a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. INDUSI:

7 Q Please state your name for the record.

8 A William Wurster.

9 Q What is your address?

10 A 335 Curtis Avenue, Carle Place, New York
11 11514.

12 Q Good morning, Mr. Wurster. Is that right?

13 A Yeah.

14 Q My name is Joe Indusi. I'm an attorney and I
15 represent Thomas and Diane DeSousa who are the
16 plaintiffs in an action that you have been
17 subpoenaed in for today's deposition. I'm
18 going to ask you some questions. You can
19 give me answers verbally so she can take it
20 down. She's taking down everything I say.
21 Then she'll take down what you respond, so if
22 you can keep your answers verbal, I'm sure the
23 court reporter would appreciate that. She can
24 only write one person at a time, so I will ask
25 the question. I will do my best to not ask a

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1 follow-up question until you answer my first
2 question. I will probably do that a few
3 times, but I will do my best not to. If you
4 don't understand my question, just say --

5 A I'll ask.

6 Q -- I don't understand what you're really
7 asking. There's no trick questions here
8 today.

9 A Okay.

10 Q They're going to be all very straightforward
11 questions. If you need a break at any time,
12 let me know. I would just -- the only rule is
13 that you answer the question that's on the
14 table before we take any kind of break.

15 These are questions I'm sure are quick nos
16 but I have to ask you. Are you taking any
17 medications today --

18 A No -- well --

19 Q -- that -- let me ask this way: Any
20 medication that would affect your ability to
21 be truthful --

22 A No.

23 Q -- in your answers?

24 A Not at all.

25 Q Have you had any alcohol or drugs in the last

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1 24 hours?

2 A I haven't drank in over 20 years. I don't
3 drink.

4 Q Not a problem.

5 Is there anything else that could affect
6 your ability to truthfully testify here today?

7 A No.

8 Q Perfect.

9 By whom are you employed?

10 A Westbury Jeep.

11 Q What is your job title there?

12 A Basically shop foreman mechanic shop.

13 Q How long have you worked there?

14 A 23 years.

15 Q And did you work anywhere before Westbury
16 Jeep?

17 A Yeah, I worked, yes.

18 Q In the car mechanic --

19 A I've been doing it for 40 years.

20 Q Understood.

21 Are you a licensed New York State
22 inspector?

23 A Yes.

24 Q How long have you been a licensed New York
25 State inspector?

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1 A Oh, gosh. 38, 40 years. At least 38
2 years.

3 Q Do you know -- now you heard me say I
4 represent Thomas and Diane DeSousa. Do you
5 know Thomas and Diane DeSousa?

6 A Not at all.

7 Q Do you know a person named Richard Calvagno?

8 A From work, yes.

9 Q How do you know him from work?

10 A He works for the body shop, does tows for
11 us.

12 Q So when -- let me go back.

13 So he works for a company AAA-1 Towing?

14 A Yes.

15 Q And they do tow work for Westbury Jeep?

16 A Yes.

17 Q And Westbury Jeep sends them collision work
18 when it comes in?

19 A Yeah. They work with us, yes, yes, yes.
20 There's a couple of shops. They're one of the
21 ones that work with us.

22 Q And you know him through that arrangement with
23 Westbury Jeep?

24 A Yeah.

25 Q That's how you know him; you don't know him

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1 from hanging out at a bar. Professional
2 relationship?

3 A That's it, 100 percent professional.

4 Q Were you aware -- well, withdrawn.

5 Are you aware he owns a 2019 Dodge
6 Charger?

7 A From this, yes, yes.

8 Q Do you -- and are you aware we're here today
9 about the subject matter of that car?

10 A Yes.

11 Q Okay.

12 A I was informed of that, yes.

13 Q I'm going to ask you some questions today that
14 are going to be about that 2019 Dodge Charger
15 that Rich Calvagno owns, and I believe you
16 inspected it at least once or twice.

17 MR. ROSS: You don't know that he did
18 or didn't.

19 MR. INDUSI: I'm not asking him to
20 confirm. I'll ask him if he has a
21 recollection of it.

22 A I really don't remember.

23 MR. INDUSI: I want to basically let
24 him know that in the next set of questions
25 I'm going to ask him about the car and his

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1 involvement in doing an inspection.

2 A I really don't remember, to be honest.

3 That's really the truthful answer. We go

4 through 150, 200 cars a day there.

5 Q I will ask it this way: Do you remember ever
6 inspecting any of Rich Calvagno's cars?

7 A It's hard. Not really, no.

8 Q Okay.

9 A I mean, obviously.

10 Q I'll get to those questions. That answer
11 stands. That's fine. I'd like to ask you
12 some questions, though.

13 You did say you were a New York State
14 licensed inspector, correct?

15 A Yeah.

16 MR. INDUSI: I'd like to mark this.

17 (Whereupon, Motor Vehicle

18 Inspection Regulations manual was

19 marked as Plaintiffs' Exhibit 1 for

20 identification, as of this date.)

21 Q You want to take a look at that, Mr. Wurster?
22 When you have had a chance --

23 A You want me to read the whole book?

24 Q No. I want you to take a general flip
25 through.

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1 A (Perusing)

2 Q Have you seen that before?

3 A Yeah, yeah. It comes up on the machine.
4 You can reprint this right out of the machine.

5 Q Very good.

6 This governs how to perform -- this
7 document, which has been marked as Plaintiffs'
8 1, governs how a New York State Safety and
9 Emissions Inspection is performed; is that
10 fair to say?

11 A Yes.

12 Q And now I just want to ask you some general,
13 basic questions.

14 When you do a safety inspection on a
15 vehicle -- so let's just step back.

16 Person comes in, buys a new car from a
17 dealership, right? There's a safety
18 inspection done before it leaves the lot; is
19 that correct?

20 A Has to be. Any car sold in New York has
21 to have an inspection sticker on it.

22 Q Right. But I want to ask a specific
23 question.

24 There's two components to an inspection,
25 correct; there's a safety inspection and an

Page 13

1 emissions inspection?

2 A Well, the first two years it's safety and
3 after that it's safety and emissions.

4 Q That's what I'm getting to, but I'm asking it
5 in steps so that we can build on it.

6 So when the car first leaves the lot, it's
7 safety only, correct?

8 A Yes.

9 Q The first year after the car left the lot, the
10 first annual inspection is safety again --

11 A Yes.

12 Q -- correct?

13 And then the subsequent inspection, which
14 would be the two-year anniversary from when it
15 left the lot, it gets an emissions and safety
16 inspection?

17 A Yes.

18 Q Now it goes to both --

19 A Yes.

20 Q -- correct?

21 And when we go through a safety
22 inspection, and you can tell me in your own
23 words what's involved, but I'm just going to
24 throw out some items that are typically
25 inspected, right, you're checking to see if

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1 the brakes are okay, windshield, tint,
2 seatbelt, tire wear, all of these things; is
3 that correct?

4 A Yes.

5 Q Is there anything else that I missed?

6 A Wipers and lights.

7 Q Wipers, lights.

8 Horn?

9 A Of course.

10 Q Okay.

11 And, in fact, when you checked the tint,
12 you use -- New York State requires that you
13 put a tint meter on it; is that correct?

14 A Yes. We don't inspect cars with tint on
15 it.

16 Q When they leave the lot, they never have tints
17 on?

18 A No. It's a big thing now. There's no
19 such thing as inspecting a car with tint
20 anymore.

21 Q Let me ask you that: And working at a
22 dealership especially, you can't pass a car
23 with tints?

24 A No. It doesn't matter. It's New York
25 State.

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1 Q It's New York State?

2 A It's nothing to do with anything.

3 Q Right.

4 But the tint part of the safety inspection
5 requires a tint meter put on the window?

6 A Yes, yes.

7 Q And if you had a car that came in with tints
8 that failed, you'd fail that car, correct?

9 A Yes.

10 Q And have you, in fact, ever failed any car for
11 tints?

12 A Yeah. All of the time we do it.

13 Q Totally get it.

14 A If they were on there and we know they're
15 on there.

16 Q That's it, you got to fail and, in fact, New
17 York State, it's a must pay pass or fail,
18 right? They have to -- there's no, "oh, we
19 give your money back and you go away." You
20 have to fail them. You have to give them the
21 fail. It has to state what the reason for the
22 fail is?

23 A Yeah.

24 Q Now, as part of a safety inspection, there's
25 no part of the safety inspection that requires

Page 16

1 you to inspect the muffler or exhaust; is that
2 correct?

3 A No, not really it's just -- no.

4 Q It's just the items we just went through?

5 A It's got to be on the car, obviously,
6 but --

7 Q There's nothing in that book that requires you
8 to check the exhaust or the muffler as part of
9 a safety inspection?

10 A No, not at all.

11 Q Now, I just want to ask you when you complete
12 an inspection, you enter the information into
13 a computer, right?

14 A Well, the information -- it reads the
15 information off the car.

16 Q I'm getting there. That's emissions
17 inspection, right?

18 A Yeah, yeah.

19 Q We're just talking about safety first.

20 A Yeah.

21 Q So you go through -- you do your safety
22 inspection, you enter your results and
23 findings into the computer and it generates an
24 inspection report, right?

25 A First you got to do the safety and then it

Page 17

1 goes through the emissions. It's all one
2 part.

3 Q Right. I'm just talking about the first year,
4 the first --

5 A Yeah.

6 Q We're just talking about safety right now.
7 Then we'll get into emissions.

8 A Yeah.

9 Q So I just want to show you what I'm going to
10 mark.

11 MR. INDUSI: This is number 2.

12 (Whereupon, Vehicle Inspection
13 Report was marked as Plaintiffs'
14 Exhibit 2 for identification, as of
15 this date.)

16 Q What does that look like to you?

17 A What does it look like to me? I guess
18 this has to be failing. With this plate
19 stuff, I don't get that, but it's like the car
20 passed.

21 Q I will ask you a direct question.

22 So this is the form -- this is the report
23 that comes out of the machine once you
24 complete an inspection; is that right, except
25 everything is redacted?

Page 18

1 A Yeah, yes. I don't ever remember seeing
2 the plate condition on that.

3 Q This is just a general form. I just want to
4 know if this is the form that the New York
5 State VIP program generates --

6 A Yes.

7 Q -- and spits out something like that,
8 forgetting about the actual data in here.
9 This isn't for Mr. Calvagno's car. This is --
10 it's just a general form. I just want to
11 understand -- so I understand the process. I
12 don't know what you do and what you've done
13 for 40 years.

14 You inspect a car. You enter all the
15 information into a New York State system. It
16 spits out a report. You give the report to
17 the customer and you go about your business,
18 right, in general terms?

19 A We also put a sticker on the car.

20 Q And you put a sticker on?

21 A And if it's expired, you scrape it.

22 Q Right.

23 Do you recall, sitting here today, if you
24 generated a form like this for Mr. Calvagno?

25 A I can't remember back that far, to be

1 honest with you, no, definitely not.

2 Q That's fine.

3 Now, I want to go into the emissions
4 inspection part of it. So I asked you some
5 questions about safety inspection. Now I just
6 want to ask you some questions about emissions
7 inspections.

8 The new way a car is inspected for
9 emissions is through OBD2?

10 A It's been like that for a long time.

11 Q Before that, you actually had to hook
12 something up to an exhaust?

13 A We have to drive the car on a dynameter.
14 That's a long time ago.

15 Q That's where the wheels actually spin?

16 A Yeah.

17 Q And there's a device that's hooked up to the
18 tail pipe to measure what's coming out of the
19 exhaust; is that correct?

20 A Yes.

21 Q Okay.

22 Newer cars, 1996 and newer, don't require
23 that. They require just simply plugging into
24 the OBD2?

25 A Yes, sir. When they went to the OBD2,

Page 20

1 that's a federal thing.

2 Q And the reason for that is these newer cars,
3 and you can correct my language if it's wrong,
4 but the newer cars have a lot of sensors in
5 them that measure the emissions internally
6 and, therefore, by reading what's on the
7 computer of the car, you can tell if it's in
8 compliance with the emissions standard; is
9 that generally a correct statement?

10 A Yes.

11 Q When you do an OBD2 emissions inspection, you
12 don't have to really inspect any of the
13 physical components of the car, the car
14 essentially inspects itself with the machine;
15 is that fair to say?

16 A Well, if there's a check engine light,
17 there's something wrong, obviously, and it's a
18 self-diagnosing system. If there's something
19 altered or anything, it won't pass.

20 Q It won't pass, and the reason it won't pass is
21 the check engine light and that's automatic or
22 it won't pick it up?

23 A On-board diagnostics.

24 Q In fact, the only thing you need to physically
25 inspect for when you do an OBD2 inspection is

Page 21

1 to make sure that there are certain emissions
2 control devices that are present on the car?

3 I will give you an example; a catalytic
4 converter, right, there needs to be one?

5 A It's part of the check, yeah.

6 Q And there needs to be an EGR?

7 A Some cars don't have EGRs anymore.

8 Q Oh, really?

9 A A lot of the newer ones don't. They run
10 that clean.

11 Q Would you have a PCV valve?

12 A That's crankcase ventilation. Any car has
13 to have that.

14 MR. ROSS: Is that a question?

15 MR. INDUSI: Yes.

16 MR. ROSS: PCV valve, that's a
17 question?

18 MR. INDUSI: Yes. I'm asking does he
19 look for PCV valve.

20 MR. ROSS: Ask questions.

21 MR. INDUSI: Okay.

22 MR. ROSS: Don't suggest answers
23 before the question is even posed, okay?

24 Q So other than checking for these emissions
25 control devices, an emissions inspection is

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1 really just plugging in the vehicle to the
2 OBD2; is that correct?

3 A First you do the check on the car. You
4 don't just plug it in. Inspect the car. You
5 check the car first.

6 Q When you say "you check the car" --

7 A You put it on the lift. You go over the
8 car whenever they came in. Then you inspect
9 it last always.

10 Q Understood.

11 A Always.

12 Q And I'm just asking you what's required for
13 New York State.

14 So what's required for New York State is a
15 safety inspection, which we went over, and the
16 emissions inspection; is that correct?

17 A Yeah.

18 Q Okay.

19 Nothing in here requires you to measure
20 the decibels of a muffler; is that correct?

21 A I don't believe there is. I haven't
22 looked in a while. I don't believe so.

23 MR. ROSS: If you don't know --

24 A No.

25 MR. ROSS: -- say you don't know.

Page 23

1 A Don't know, obviously.

2 Q Have you, in the last 30 years of doing
3 inspections, ever used a decibel meter to
4 measure its sound coming out of an exhaust?

5 A No.

6 MR. CUOMO: Off the record.

7 (Whereupon, a discussion was held
8 off the record.)

9 Q When you do an inspection at Westbury Jeep, do
10 you have anything to do with preparing
11 invoices or anything like that?

12 A What do you mean repairing invoices?

13 Q Preparing, preparing.

14 A Preparing. That's a service writer's job.

15 Q Okay.

16 A We make recommendations.

17 MR. ROSS: Answer the question that
18 he's asking.

19 A No, no, no.

20 Q So when the person comes in to get a car
21 inspected, you get a work order to prepare an
22 inspection; is that correct?

23 A Repair order, yes.

24 MR. ROSS: Your question is what is
25 the procedure. Just ask him what the

Page 24

1 procedure is, but stop telling him the
2 answer before you ask a question.

3 MR. INDUSI: I'm not. I'm asking if
4 the procedure is that he gets a repair
5 order and then he does something.

6 Q When you get the repair order for an
7 inspection --

8 MR. ROSS: What do you do?

9 MR. INDUSI: I know how to ask the
10 question. Thanks.

11 MR. ROSS: Then do it.

12 MR. INDUSI: I am doing it.

13 Q What do you do once you get a repair order?

14 A You have to get the car from the lot,
15 bring it into the shop, look it over.

16 Q And after you perform the New York State
17 inspection on the car, what do you do after
18 that?

19 A You park the car in the lot. You give the
20 repair order to the service writer.

21 Q And after that, they deal with the customer?

22 A Yeah. We don't deal with the customers.

23 Q When you say you give the repair order back to
24 the service writer, do you write anything on
25 that repair order?

Page 25

1 A No. We use everything electronic at work.

2 Q So you have the ability to enter
3 electronically information into the --

4 A No, no, no, not on the lines, no, no, no.

5 Q So how do you communicate your findings after
6 inspecting a vehicle to the service writer?

7 A We do it before and then you check the car
8 out, either going to pass it or not. It's a
9 dealer. Most of the cars are new. It's --
10 the service writer deals with the customers.

11 Q My question is: You deal with the service
12 writer, correct?

13 A Yeah.

14 Q How do you communicate with the service writer
15 about what you found?

16 A We talk verbally or use back and forth
17 through computers once you going on the RO.

18 Q Do you have the ability to update the
19 information in the repair order?

20 A Not -- not whatsoever, no.

21 Q So if there's an update to the repair order,
22 it sounds to me like what you're saying is you
23 communicate that verbally to the service
24 writer?

25 A Yes, only through the service writer

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1 verbally, yes.

2 Q I'd like show you two work orders -- repair
3 orders, sorry, two repair orders involving Mr.
4 Calvagno's car. So I'm going to hand you --

5 MR. INDUSi: We can mark this as 3.

6 (Whereupon, repair orders were
7 marked as Plaintiffs' Exhibit 3 for
8 identification, as of this date.)

9 Q So what I have just handed you was turned over
10 by your attorney. It's been marked as
11 Plaintiffs' 3. I'm going to ask you --
12 probably easier to -- it's a number of
13 documents. It's page one, two, three, four,
14 five, six, seven, eight, it's the eighth page
15 from the back, so if you start at the back and
16 count eight forward.

17 MR. ROSS: You are referring to an
18 invoice?

19 MR. INDUSI: Yes.

20 MR. ROSS: What number?

21 MR. INDUSI: I just want him get to the
22 page to make sure we're talking about the
23 same thing.

24 A I see the repair order number. What do
25 you got?

Page 27

1 Q It says at the top, invoice number 140337.

2 It's the eighth page from the back.

3 A 14 --

4 Q 0337.

5 A There you go.

6 Q So if you could just take a look at that page
7 and look up when you're done?

8 A (Perusing)

9 MR. ROSS: Do you have a copy for me?

10 MR. INDUSI: Isn't that a copy right
11 there that you have? It's what you
12 provided.

13 MR. ROSS: I realize but I don't know
14 where it is exactly.

15 MR. INDUSI: It's the eighth page.
16 It's right here, that page.

17 MR. ROSS: This page?

18 MR. INDUSI: 140337, correct.

19 Q So what does this repair order show?

20 A That I inspected the car, and I don't
21 recall, it's too long ago.

22 Q I understand. You already said you don't
23 remember performing the inspection, but I just
24 want to show you this repair order and ask you
25 the question: Does this repair order reflect

Page 28

1 that you did, in fact, inspect the car?

2 A Yes.

3 Q And does it show a date that the car was
4 inspected?

5 A The 3rd of May.

6 Q And what year?

7 A '22.

8 Q All right.

9 And based on this repair order, did the
10 car pass?

11 A Obviously.

12 Q You say "obviously." How -- why is it that
13 obvious?

14 A It says -- you know, whatever. I --
15 actually, yes, obviously, it was fine.

16 Q When you say "obviously," though, is there
17 anywhere on here where it indicates that the
18 car passed?

19 A It's performed New York State inspection.

20 Q Okay.

21 I just want to make sure there's no line
22 item that says pass or fail or something that
23 I missed. You say it's obvious. It wasn't
24 obvious to me, but I just want to ask you the
25 question: Why, when you see this, do you

Page 29

1 believe it's obvious that the car passed?

2 A It -- um -- it was inspected. It's a
3 fairly new car with low mileage.

4 Q Okay.

5 Is there anything on this repair order
6 that indicates pass or fail?

7 A No.

8 Q I want to go to repair order 182040. That is --
9 just for convenience, it's the third page from
10 the bottom of the stack, so count -- it's the
11 third page from the last page. It says at the
12 top 182040.

13 A Mm-mm.

14 Q What does this repair order show?

15 A Inspection was done on the car.

16 Q And was that inspection done by you?

17 A Obviously. My name, number's on it.

18 Q And when was this inspection done?

19 A May of '23.

20 Q Understood. Okay.

21 And, again, from looking at this record,
22 did the vehicle pass or fail the inspection on
23 that date?

24 A I don't remember, to be honest with you.

25 Q Okay.

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1 A It's too hard to recall.

2 Q When an inspection is complete, pass or fail,
3 are you able to go back in the New York VIP
4 system and look back to generate a report of
5 the inspection on that vehicle?

6 A Only for one year.

7 Q For one year only?

8 A That's it.

9 Q Other than going back in the New York VIP
10 program to check what happened on a particular
11 inspection, is there any other record that's
12 available that would determine whether or not
13 a car passed or failed an inspection?

14 A No.

15 Q Your name is indicated on this service
16 record -- this repair order as well as your
17 license number. Do you enter this information
18 into the repair order or does somebody else at
19 Westbury Jeep enter that information?

20 A We can't do any of that. It comes
21 automatic, to be honest with you, once you
22 punch on that ticket.

23 Q Understood.

24 When you perform the actual inspection on
25 New York VIP program, do you have to enter in

Page 31

1 your credentials --

2 A Of course.

3 Q -- to show that you were the licensed
4 inspector that performed that inspection?

5 A Of course.

6 MR. INDUSI: I don't think I have
7 anything else.

8 (Whereupon, at 10:47 A.M. the
9 Examination of William Wurster was
10 concluded.)

11

12

13

14

WILLIAM WURSTER

15

16

17 Subscribed and sworn to before me

18 this ____ day of _____, 2024.

19

20

21

Notary Public

22

23

24

25

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I N D E X

WITNESS	EXAMINATION BY	PAGE
William Wurster	Mr. Indusi	3

-oo0oo-

E X H I B I T S

PLAINTIFFS'	DESCRIPTION	PAGE
Exhibit 1	Motor Vehicle Inspection Regulations manual	11
Exhibit 2	Vehicle Inspection Report	17
Exhibit 3	Repair orders	26

-oo0oo-

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C E R T I F I C A T E

I HEREBY CERTIFY that the Witness was duly
sworn by me, the officer before whom this
Examination Before Trial was taken, and that
the minutes herein are a true and accurate
transcription of the proceedings hereunder.

Rosemarie Tulumello Ellis
ROSEMARIE TULUMELLO (ELLIS)

516-608-2400

[0337 - book]

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New York Code

Civil Practice Law and Rules

Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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Page 1

1 SUPREME COURT OF THE STATE OF NEW YORK

2 COUNTY OF SUFFOLK

3 -----X

4 DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Index No.:

5 Plaintiffs,

600371/2021

6 -against-

7 RICHARD A. CALVAGNO II AND PATRICK J.

8 KARCHER,

9 Defendants.

10 -----X

11 330 Old Country Road

Mineola, New York

12 January 16, 2024

13 10:50 A.M.

14
15
16 EXAMINATION BEFORE TRIAL of PAUL VALENZANO, a
17 Nonparty witness herein, taken by Plaintiffs, pursuant
18 to Subpoena.
1920 -oo0oo-
21
22
23
24
25

Page 2

A P P E A R A N C E S:

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S T I P U L A T I O N S

IT IS HEREBY STIPULATED AND AGREED by
and between the attorneys for the respective parties
herein, and in compliance with Rule 221 of the Uniform
Rules for the Trial Courts

THAT the parties recognize the provision of
Rule 3115 subdivisions (b), (c) and/or (d). All
objections made at a deposition shall be noted by the
officer before whom the deposition is taken, and the
answer shall be given and the deposition shall proceed
subject to the objections and to the right of a person
to apply for appropriate relief pursuant to Article 31
of the CPLR.

THAT every objection raised during a
deposition shall be stated succinctly and framed so as
not to suggest an answer to the deponent and, at the
request of the questioning attorney, shall include a
clear statement as to any defect in form or other basis
of error or irregularity. Except to the extent
permitted by CPLR Rule 3115 or by this rule, during the
course of the examination persons in attendance shall
not make statements or comments that interfere with the
questioning

THAT a deponent shall answer all questions at a
deposition, except (i) to preserve a privilege or right

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1 of confidentiality, (ii) to enforce a limitation set
2 forth in an order of a court, or (iii) when the question
3 is plainly improper and would, if answered, cause
4 significant prejudice to any person. An attorney shall
5 not direct a deponent not to answer except as provided
6 in CPLR Rule 3115 or this subdivision. Any refusal to
7 answer or direction not to answer shall be accompanied
8 by a succinct and clear statement of the basis
9 therefore. If the deponent does not answer a question,
10 the examining party shall have the right to complete the
11 remainder of the deposition

12 THAT an attorney shall not interrupt the
13 deposition for the purpose of communicating with the
14 deponent unless all parties consent or the communication
15 is made for the purpose of determining whether the
16 question should not be answered on the grounds set forth
17 in section 221.2 of these rules and, in such event, the
18 reason for the communication shall be stated for the
19 record succinctly and clearly.

20 THAT failure to object to any question
21 or to move to strike any testimony at this examination
22 shall not be a bar or waiver to make such objection or
23 motion at the time of the trial of this action, and is
24 hereby reserved; and

25 THAT this examination may be signed and

Page 5

1 sworn to by the witness examined herein before any
2 Notary Public, but failure to do so or to return the
3 original of the examination to the attorney on whose
4 behalf the examination is taken shall not be deemed a
5 waiver of the rights provided by Rules 3116 and 3117 of
6 the CPLR, and shall be controlled thereby, and

7 THAT certification and filing of the
8 original of this examination are waived; and

9 THAT the questioning attorney shall provide
10 counsel for the witness examined herein with a copy of
11 this examination at no charge.

12
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14 -oo0oo-
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Page 6

1 P A U L V A L E N Z A N O, having been first duly
2 sworn by Rosemarie Tulumello(Ellis), a Notary Public of
3 the State of New York, was examined and testified as
4 follows:

5 EXAMINATION BY

6 MR. INDUSI:

7 Q Please state your name for the record.

8 A Paul Valenzano.

9 Q What is your address?

10 A 41-50 249th Street, Little Neck, New York
11 11363.

12 Q Mr. Valenzano, my name is Joe Indusi. I
13 represent Tom and Diane DeSousa, the
14 plaintiffs in this action. You've been
15 subpoenaed here as a nonparty witness. You're
16 obviously not a party to that lawsuit. I'm
17 going to ask you a bunch of questions, not too
18 long, as you saw from the prior deposition.
19 I just want to go over a few ground rules.

20 Make sure you let me finish each question
21 before you start to answer it and I will do my
22 best to let you finish your answer before I
23 ask the next question. Please keep your
24 responses verbal and not physical. She can
25 only take down what's being said by both me

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1 and you. She can't down the head nods or
2 anything like that. Again, she can only
3 write one person at a time, so if you let me
4 finish and then you answer, like I said, I
5 will let you answer so she can get everything
6 down. If you don't understand the question
7 that I ask or there's a caveat or some change,
8 your answer is not as clean as the question
9 proposes, just ask me to rephrase the question
10 or repeat the question. I'm happy to do that.
11 If you need a break at any time, feel free to
12 ask for a break. We just have to answer the
13 question that's out there first, then you can
14 take a break.

15 Do you understand all these?

16 A Yeah.

17 Q Before we start the questions substantively,
18 are you taking any medications today that
19 would impair your ability to testify
20 truthfully here?

21 A No.

22 Q Have you used any alcohol or drugs in the last
23 24 hours?

24 A No. I only have taken a little cough
25 medicine. I'm a little congested.

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1 Q Not going to affect your ability to tell the
2 truth?

3 A No, no, no, no.

4 Q No problem.

5 Who are you employed by?

6 A Westbury Jeep.

7 Q What is your job title there?

8 A I do the new car preps.

9 Q How long have you worked there?

10 A About 10, 12 years.

11 Q What did you do before you worked for Westbury
12 Jeep?

13 A Worked for BMW in Oyster Bay.

14 Q Very nice.

15 Have you been in cars most of your career?

16 A Yes.

17 Q Are you a licensed New York State inspector?

18 A Yes.

19 Q Do you know who Richard Calvagno is?

20 A No.

21 Q Do you know who Tom or Diane DeSousa are?

22 A No.

23 Q Are you aware that you're here today in
24 connection with a car that's owned by Rich
25 Calvagno?

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1 A I'm aware from being told that, yeah,
2 yeah, yes.

3 Q Sitting here right now, are you aware that
4 we're here about a car that's owned by Rich
5 Calvagno, namely a 2019 Dodge Charger?

6 A Yes.

7 Q I'm going to ask you some questions about that
8 2019 Dodge Charger, your involvement with it,
9 inspecting it; do you understand that?

10 A Yes.

11 Q You said you were a licensed New York State
12 inspector. How did you become licensed?

13 A I got -- I went through a test procedure
14 in the city and they gave me a license and now
15 I do the stickers on the machine.

16 Q When did you become licensed?

17 A It's probably in maybe '02 or '03.

18 Q Over 20 years, is that fair to say?

19 A Yeah, yeah, yeah, yeah.

20 Q Understood.

21 I'm going to show you what's already been
22 marked as Plaintiff's 1. Have you ever seen
23 that cover page to that document before?

24 A Yes.

25 Q How have you seen that?

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1 A It's an -- I think I actually went to
2 school, when I went to the school for the
3 class, and I read the manual. You have to
4 look through the manual to know the cars and
5 procedures.

6 Q Is it fair to say that that manual, what's
7 been marked as 1, is the manual for performing
8 a New York State inspection in New York?

9 A Yes, yes.

10 Q Now, I want to just ask you some general
11 questions about how cars get inspected in New
12 York State, okay?

13 A Yeah.

14 Q When a person buys a new car from a
15 dealership, there needs to be a safety
16 inspection before that car leaves the lot; is
17 that correct?

18 A Yes.

19 Q And the first inspection a year after that car
20 leaves the lot, that's also a safety
21 inspection that's done; is that correct?

22 A Yes, yes.

23 Q No emissions inspection is needed on that
24 first year anniversary and no emissions
25 inspection is needed on that initial

1 inspection when the car leaves the lot; is
2 that correct?

3 A Yes.

4 Q In your own words, tell me what's involved in
5 a safety inspection of a vehicle, whether it's
6 when it leaves the lot for the first time or
7 one year thereafter.

8 A Just check the brakes, taillights, make
9 sure the wipers work, make sure the windows
10 are not cracked, make sure the mirrors are all --
11 you know, everything has to work, the lights
12 and everything, no lights on the dash or
13 anything and should be good.

14 Q Is one of the things included in the safety
15 inspection to make sure there's no tint on the
16 windows?

17 A Oh, yeah, tint, too, yeah.

18 Q And does New York State require you to use a
19 tint meter if there's tint on the windows?

20 A Yes, yes, you're supposed to check.

21 Q Would you agree that as part of a safety
22 inspection, there's no inspection of the
23 exhaust system?

24 A No, there is no, yeah.

25 Q There is none, right?

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1 A No, no.

2 Q Now, after an inspection, safety inspection is
3 done, let's just stay with the safety
4 inspection for right now, you enter
5 information into the New York VIP program; is
6 that correct?

7 A Yes.

8 Q And upon a pass or a fail, a report is
9 generated from that New York VIP program; is
10 that correct?

11 A Yes.

12 Q And what I'm showing you right now, which has
13 been marked as Plaintiffs' 2, is a redacted
14 copy. There's no actual car information or
15 service center information on it, but it's the
16 general form of what's generated after an
17 inspection is completed; is that correct?

18 A Yes.

19 Q Now, after the one-year anniversary that the
20 car leaves the lot, the second-year inspection
21 needs to not only be a safety inspection but
22 also an emissions inspection; is that correct?

23 A Yeah.

24 Q Now, when we talk about an emissions
25 inspection in New York State, that largely

1 involves connecting the vehicle to the
2 diagnostic port or OBD2; is that correct?

3 A Yes.

4 Q The days of measuring or reading the actual
5 gases coming out of the exhaust pipe are over;
6 is that correct?

7 A Yes.

8 Q Other than connecting the vehicle to OBD2 to
9 read the sensors on the car, the only thing
10 you have to do for an emissions inspection is
11 to make sure there are certain emissions
12 components present on the vehicle; is that
13 correct?

14 A Yes.

15 Q In other words, you have to make sure that
16 there's a catalytic converter there --

17 A Yeah.

18 Q -- is that correct?

19 A Yes. You are supposed to check the car
20 before you even get to that point to make sure
21 its safe and can pass.

22 Q So when you do a New York State inspection
23 that comprises both a safety inspection and an
24 emissions inspection, you do the safety
25 inspection first; is that correct?

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1 A Yes.

2 Q And as part of a safety inspection, you look
3 over the car to make sure there's nothing out
4 of place or not safe; is that right?

5 A Yes, yes.

6 Q Okay.

7 And then you connect the car to OBD2 to do
8 the emissions test; is that correct?

9 A Yes.

10 Q And if a check engine light is on, the
11 emissions check will almost invariably fail;
12 is that right?

13 A Yes, yes.

14 Q That's because one of the emissions sensors on
15 the vehicle is reporting some kind of
16 out-of-range value, usually; is that correct?

17 A Yes.

18 Q There's no sensor -- the rearmost sensor on a
19 car from an emissions standpoint is the rear
20 oxygen sensor, which is after the catalytic
21 converter; is that correct?

22 A Yes.

23 Q There's no sensors in the exhaust or muffler;
24 is that correct?

25 A Yes.

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1 Q And when you do a New York State emissions
2 inspection, you don't actually inspect the
3 muffler or the exhaust rear of the catalytic
4 converter; is that correct?

5 A Yes.

6 Q There's no decibel reading that you have to
7 take of the muffler as part of an inspection,
8 right?

9 A No.

10 Q New York State inspection doesn't require the
11 car to be a certain decibel level at all,
12 right?

13 A No, no, not yet.

14 Q Not yet?

15 A Yeah.

16 Q As long as the car doesn't report any
17 emissions problem and all of the emissions
18 components are present, the car passes; is
19 that correct?

20 A Yes.

21 Q So when we talk about terms like stock or
22 aftermarket in the car world, stock means it
23 comes from the dealer or the manufacturer a
24 certain way and aftermarket means it's
25 something that's been added; is that correct?

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1 MR. ROSS: Is that a question?

2 MR. INDUSI: Yeah. We can repeat the
3 question.

4 MR. ROSS: If you want to ask what
5 stock is, ask what stock is.

6 MR. INDUSI: I don't have to ask it
7 that way, Cye, with all due respect. I
8 can ask him the questions the way I'm
9 asking and he can say yes, no or I believe
10 stock to mean something else. There's no
11 requirement I ask him an open-ended
12 question like you want me to.

13 Q When we talk about stock, in your
14 understanding of what stock means, it comes
15 from the manufacturer that way; is that --

16 A Yes.

17 Q -- how you understand the word stock?

18 A Yes, yes.

19 Q And aftermarket means somebody added it after
20 it left the manufacturer; is that correct?

21 A Yes.

22 Q Is that your understanding?

23 A Yes.

24 Q And for a New York State inspection, as long
25 as the vehicle passes the safety inspection

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1 and passes the emissions inspection, it does
2 not matter whether there's aftermarket parts
3 on the car or not; is that correct?

4 A Yes.

5 Q Now, I want to show you some repair orders,
6 very simple questions. In front of you is
7 Plaintiffs' 3 and yours are actually great
8 because it's page two, so if you flip the page
9 over one time, at the top of the page it
10 should say 902003. Do you see that document?
11 You see that page?

12 A What page?

13 Q It's page two. It says at the top 902003.

14 A Yeah, I see the RO number there.

15 Q Why don't you take a look at this page and
16 then look up and I'll ask you some questions?

17 A I don't have my reading glasses, though.
18 I can't read it.

19 Q Okay.

20 Are you able to see any of the words on
21 the page? I don't want -- there's really no
22 trick questions. My main question is: It
23 says under letter "C Safety NYSI" and then it
24 says your name --

25 A Yeah, I see that.

Page 18

1 Q -- do you see that?

2 A Yeah, I see it.

3 Q What does that indicate? When looking at this
4 repair order, what does that line item C
5 indicate?

6 A It means I did the inspection on the car.

7 Q And you did a safety inspection on the car,
8 correct?

9 A Yes, yes.

10 Q Not an emissions inspection, right?

11 A Yes.

12 Q Is there a date that that safety inspection
13 was done?

14 A Yes.

15 Q What's that date?

16 A I really -- I really can't see it. March --
17 is it 18? I really can't see it.

18 MR. ROSS: If you can't read it, tell
19 the gentleman you can't read it.

20 A I can't see it without my glasses. I
21 didn't bring them.

22 Q The other line items on this page, are you
23 able to see them? Like, for instance, it says
24 "clean and fill with gas."

25 MR. CUOMO: Would it help if I bring it

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1 up on a laptop and maybe expand it for
2 you; would that be better for you?

3 THE WITNESS: Yeah. I'd be able to see
4 it.

5 MR. CUOMO: You would be able to see
6 it?

7 THE WITNESS: Yeah. I'd be able to
8 see more of this.

9 MR. CUOMO: You will have to give me a
10 minute or two to get this thing up and
11 going.

12 MR. ROSS: You want to just read it to
13 him?

14 MR. CUOMO: You want to do it that way?

15 MR. INDUSI: I'm happy to, but I want
16 to make sure he can just confirm -- off
17 the record.

18 (Whereupon, a discussion was held
19 off the record.)

20 Q So back on the record, Mr. Valenzano, the
21 particular repair order that you're looking
22 at, 902003, was that the initial repair order
23 that was generated when the car was first
24 purchased in connection with its prep?

25 A Yes.

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1 Q Can you tell from looking at that repair order
2 when the repair order was opened?

3 A It was open May '19.

4 Q Was it opened May '19 or was it ready May '19?

5 A That was when it was sold, when it went
6 out.

7 Q Can you tell and from looking at this repair
8 order, are you able to tell the day that you
9 did the safety inspection?

10 A It was April '19.

11 Q Okay.

12 And that's because you would have done it
13 the day --

14 A The 26th.

15 Q -- the day it was opened; is that correct?

16 A Yeah.

17 Q Mr. Valenzano, sitting here today, do you have
18 any independent recollection of performing
19 that safety inspection back in April of 2019?

20 A No. I do a lot of cars.

21 Q Totally get it.

22 If you flip now on this -- flip one page
23 and then flip another page, this should say
24 951386 at the top. Do you see that?

25 A Yes.

Page 21

1 Q And you can pick this up and put it as close
2 to you or as far away as possible to help you.

3 What happened to have happened on May 8th
4 of 2020 in connection with this vehicle?

5 A It had an inspection done.

6 Q And does this repair order indicate whether it
7 was a safety inspection or an emissions
8 inspection?

9 A It's a safety.

10 Q And does that repair order indicate who
11 performed that safety inspection?

12 A Does have a number, yeah -- does it have a
13 number? That's not the employee number there,
14 no, it's not.

15 Q There is not.

16 Do you have, sitting here today, any
17 independent recollection of whether you
18 performed this safety inspection or not?

19 A No, I don't.

20 Q To your knowledge, sitting here today, did you
21 ever perform any emissions inspections on Mr.
22 Calvagno's vehicle?

23 A Not that I remember.

24 Q Understood.

25 These work orders here, do you input

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1 pricing onto these work orders?

2 A No.

3 Q Who does?

4 A The company does it. I don't. I don't
5 do it.

6 MR. INDUSI: I have nothing further.

7 (Whereupon, at 11:14 A.M. the
8 Examination of Paul Valenzano was
9 concluded.)

10

11

12

13

PAUL VALENZANO

14

15

16 Subscribed and sworn to before me

17 this ____ day of _____, 2024.

18

19

20

Notary Public

21

22

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24

25

Page 23

I N D E X

WITNESS

EXAMINATION BY

PAGE

Paul Valenzano

Mr. Indusi

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C E R T I F I C A T E

I HEREBY CERTIFY that the Witness was duly
sworn by me, the officer before whom this
Examination Before Trial was taken, and that
the minutes herein are a true and accurate
transcription of the proceedings hereunder.

Rosemarie Tulumello Ellis
ROSEMARIE TULUMELLO (ELLIS)

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1

** ERRATA SHEET **

CASE: DIANE C. DESOUSA, et al. vs.

2

RICHARD A. CALVAGNO II, et al.

DEPOSITION DATE: 1/16/2024

3

DEPONENT: PAUL VALENZANO

4

PAGE LINE(S) CHANGE REASON

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21

PAUL VALENZANO

22

SUBSCRIBED AND SWORN TO BEFORE ME

23

THIS _____ DAY OF _____, 20____.

24

25

(NOTARY PUBLIC)_____
MY COMMISSION EXPIRES:

[02 - car]

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[car - emissions]

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[emissions - irregularity]

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New York Code

Civil Practice Law and Rules

Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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